Form No: HCJD/C-121

ORDER SHEET.

IN THE ISLAMABAD HIGH COURT, ISLAMABAD,
(JUDICIAL DEPARTMENT).

Regular First Appeal No. 101 of 2013

Siraj Ulmulk

Versus

Malik Hassan Akhtar and others.

S.No. of order/ proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary.
(08)	02.12.2024	Mr. Tariq Aziz, Advocate for the appellant. Respondents are Ex-parte.

Through this Regular First Appeal, filed U/S 96 of C.P.C, the appellant has impugned judgment & decree dated 15.04.2013, passed by learned Civil Judge 1st Class, East-Islamabad, whereby civil suit filed by appellant was dismissed with cost.

02. Brief facts of the case are that earlier, the appellant filed a suit for specific performance and permanent injunction with the contentions that he entered into an agreement dated 16.11.1992, with the respondents to purchase land measuring 145 Kanals, 15 Marlas bearing Khasra No. 4972/1182 in Village Sihala, Islamabad at the rate of Rs. 30,000/- per kanal.

According to the appellant, an amount of Rs. 22,00,000/- was paid as earnest money by him to respondents through Pay Order and possession was also delivered to him. It is further stated that the land was to be transferred in his name after clearance of their title. Later on, the appellant had been trying to get the land transferred in his name after payment of the remaining sale consideration, but the respondents were not inclined to perform their part of agreement on one pretext or the other.

03. Respondents had contested the suit, the trial Court after framing of issues, recording of evidence and hearing of arguments from both the parties, dismissed the civil suit vide impugned judgment & decree dated 15.04.2013, hence the instant R.F.A.

04. Learned counsel for the appellant, *inter-alia,* contends that learned trial Court passed the impugned judgment and decree in a slipshod manner without having regard to the facts and documents available on record; learned trial Court violated the

provision of Order XX Rule 5, CPC while passing the impugned judgment & decree; learned trial Court has failed to exercise its jurisdiction under Order XIV Rule 16, CPC; learned trial Court has ignored the provisions of Section 19 of the Specific Relief Act, 1877; the impugned judgment & decree is erroneous, not tenable under the law, hence liable to be set-aside.

05. Arguments heard, record perused.

06. Service of notice upon the respondents was effected by this Court through publication in "Daily Jang", however, no one is in attendance on their behalf, therefore, respondents were ordered to be proceeded ex-parte vide order dated 19.11.2024.

07. The appellant filed suit for specific performance of agreement dated 16.11.1992, through which he purchased land bearing No. 145 Kanal, 15 Marlas situated in village Sihala, Tehsil and District Islamabad from the respondents/defendants. The

respondent/defendant No.1 contested the suit by filing written statement in which he denied the execution of sale agreement with the appellant/plaintiff, defendant No. 2 admitted the execution of agreement but stated that it was a contingent contract as title of the defendants was not clear.

08. Issues were framed, evidence of the parties was recorded, the appellant/plaintiff was bound to produce agreement dated 16.11.1992, in his evidence and was also liable to prove the same in accordance with Article 17 and 79 of Qanun-e-Shahadat, 1984 but the appellant/plaintiff neither produced the agreement in his evidence nor rendered proof of payment of an amount of Rs. 22,00,000/-.

09. I have heard learned counsel for the appellant and gone through the record, carefully examined the impugned judgment & decree dated 15.04.2013, and find that learned lower Court has assigned valid reasons for reaching its conclusion which is duly supported by law and facts.

10. I find no reason, basis or justification to interfere with the matter, not persuaded to take a view different from the one taken by learned trial Court.

11. Learned counsel for the appellant has failed to point out any illegality and infirmity in the impugned judgment & decree dated 15.04.2013, passed by learned Civil Judge 1st Class, East-Islamabad, hence no interference is required by this Court, and the appeal is accordingly **dismissed**.

(TARIQ MEHMOOD JAHANGIRI)
JUDGE

Bilal /-